

(49)

Tentative Ruling

Re: **Covarrubio v. City of Fresno**
Superior Court Case No. 26CECG00277

Hearing Date: July 15, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny, without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

***If oral argument is timely requested, such argument will be heard
on Thursday July 16, 2026 at 3:30 pm.***

Explanation:

Petition submitted by Petitioner seeks approval for the compromise of minor claimant's claim resulting from a motor vehicle accident. However, the petition has several issues that need to be addressed before the settlement can be approved.

The petition at item 12.b.(2) indicates a private health insurance paid the health care of Minor and no reimbursement is being requested by the plan. Written evidence of the agreement by the private health insurance plan to not seek reimbursement is requested.

Additionally, item 13.b. lists costs as only "litigation costs" with no breakdown of individual items being sought reimbursement. The total costs listed is \$584.69. Attachment 14 does contain proof of costs and expenses. However, the attached proofs of costs and expenses only combine for a total amount of \$530.24. The proof and the amount requested need to be reconciled.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 14, 2026 .
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***In re Jacob Cox***
Superior Court Case No. 25CECG01228

Hearing Date: July 15, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny without prejudice. Petitioner Jessica Cox must file a new petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of an amended petition. In the event that oral argument is requested, both petitioner Jessica Cox and claimant Jacob Cox are excused from appearing.

***If oral argument is timely requested, such argument will be heard
on Thursday July 16, 2026 at 3:30 pm.***

Explanation:

Item 12 reports medical expenses. The petition reports \$215.22 to be paid from the settlement to Walgreens, Inc. The court is unable to ascertain the nature of the medical expense and what medical care Walgreens, Inc. provided. If these are out-of-pocket expenses incurred by Petitioner Jessica Cox ("Petitioner"), as the list of supplies purchased for after care seems to suggest, Petitioner should clearly state as much, and not as a medical expense under Item 12, but a general expense under Item 13.

Item 13 further seeks payment from claimant's settlement Petitioner for lost wages. The petition continues to fail to identify a basis for the claim. No justification was given as to why Petitioner's lost wages are the responsibility of claimant Jacob Cox. This petition is for the compromise of the minor. To hold the minor responsible for Petitioner's lost wages would require a finding that the minor was somehow at fault for Petitioner missing work. If this is the nature of the contested liability reported on the settlement and the minor is partially at fault, the petition must clearly state as much.

For the above reasons, the petition is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 14, 2026.
(Judge's initials) (Date)